

the FAC alleges intentional dumping of debris (FAC ¶ 30), defiance of a County abatement order (FAC ¶¶ 9-10), incomplete or inaccurate disclosures to regulators (FAC ¶ 9), and continued conduct after repeated warnings. (FAC ¶¶ 8, 39, 42.)

The Court finds that the allegations of the FAC are sufficient to support Plaintiff's request for punitive damages at the pleading stage and the arguments Defendants raise are better suited to summary adjudication or trial.

Disposition

Based on the foregoing, Defendants' motion to strike is **denied**.

5. 9:00 AM CASE NUMBER: C24-02180

CASE NAME: GRETCHEN HUGHES VS. PATRICK O'DONNELL

*HEARING ON MOTION IN RE: FOR LEAVE TO FILE SECOND AMENDED COMPLAINT AND TO CONSOLIDATE ACTIONS

FILED BY: HUGHES, GRETCHEN

TENTATIVE RULING:

The unopposed motion of Plaintiff for Leave to File a Second Amended Complaint and to Consolidate Action is granted. Plaintiffs shall file their Second Amended Complaint by noon on May 18, 2026. Upon service by Plaintiff, Defendants shall have 30 days to file responsive pleadings.

This action is consolidated with Contra Costa County Case Number 26-00612, with the instant case to be designated the lead docket.

Court vacates the August 26, 2026 Settlement Conference.

Parties are ordered to appear **Monday, June 22, 2026 at 8:30 a.m. in Dept. 32 for a Case Management Conference (CMC)**. Zoom appearance is allowed. Parties must file and serve updated CMC Statements 10 days in advance of June 22, 2026.

6. 9:00 AM CASE NUMBER: C25-00529

CASE NAME: MARCI TREVINO VS. RAMSELL CORPORATION

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: RAMSELL CORPORATION

TENTATIVE RULING:

Defendant Ramsell Corporation's demurrer to the fifth cause of action in the complaint is **sustained with leave to amend**.

Plaintiff Marci Trevino filed a complaint for various employment related torts. Defendant demurred to Cause of Action Five for violation of the California Equal Pay Act (EPA) based on the failure to state sufficient facts to establish a cause of action. (Code of Civil Procedure § 430.10(e).)

Labor Code “ ‘[s]ection 1197.5 is California's equal pay law. Its operative subsection states: “No employer shall pay any individual in the employer's employ at wage rates less than the rates paid to employees of the opposite sex in the same establishment for equal work on jobs the performance of which requires equal skill, effort, and responsibility, and which are performed under similar working conditions, except where the payment is made pursuant to a seniority system, a merit system, a system which measures earnings by quantity or quality of production, or a differential based on any bona fide factor other than sex.” (§ 1197.5, subd. (a).)’ (*Green v. Par Pools, Inc.* (2003) 111 Cal.App.4th 620, 622–623.)” (*Allen v. Staples, Inc.* (2022) 84 Cal.App.5th 188, 193-194.)

“To prove a prima facie case of wage discrimination, ‘a plaintiff must establish that, based on gender, the employer pays different wages to employees doing substantially similar work under substantially similar conditions. [Footnote omitted.]’ [Citation.]” (*Allen, supra*, 84 Cal.App.5th at 194; see also CACI no. 2740.)

Plaintiff argues that *Green* and *Allen* are inapplicable because they were decided on the evidence, either summary judgment or trial. The Court is mindful that these cases were not decided on the pleadings, but they are still applicable here as they provide the elements for a claim under the EPA.

Defendant argues that Plaintiff has not alleged facts to state a claim under the equal pay law. Defendant argues that these allegations are too conclusory and fail to allege that there was a male employee who (1) performed work requiring equal skill, effort, and responsibility performed under similar working conditions and (2) was paid more than her. Plaintiff argues that the allegations are sufficient.

Plaintiff also argues that requiring her to allege more would make it difficult for female corporate executives to allege a violation of the EPA. Plaintiff’s argument may be correct, but Plaintiff has not cited any case law that holds the requirements for corporate executives are different than those for other employees. The Court will review Plaintiff’s allegations under the current state of the law, which includes showing that there are other employees doing substantially similar work who are paid more.

Plaintiff argues that they are not required to identify a comparator in the complaint. Defendant argues that they were not asking Plaintiff to identify a specific comparator, but only to include facts supporting the elements for a violation of the equal pay law. It appears

to the Court that Defendant was not arguing that Plaintiff must name a specific individual, but rather must allege sufficient facts to show that there were employees doing substantially similar work under substantially similar conditions who were paid more.

Here, Plaintiff was hired as the vice president of human resources. (Comp. ¶ 7.) “Eventually, Defendant would rely on Plaintiff for human resources, accounting, corporate compliance, and information technologies (IT).” (Comp. ¶13.) Plaintiff alleged that she “was simultaneously performing three jobs” and “was paid significantly less than male employees who had significantly less responsibility.” (Comp. ¶¶ 73-74.)

The Court finds that Plaintiff has not alleged facts showing that there was an employee doing substantially similar work under substantially similar conditions who was paid more than Plaintiff. The allegation that Plaintiff was paid less than male employees with significantly less responsibility is insufficient. Having responsibility is not the same as doing substantially similar work. **The demurrer to Cause of Action Five is sustained.** This is the first challenge to this cause of action and Plaintiff has requested leave to amend. Therefore, Plaintiff is given leave to amend.

Plaintiff must file and serve an amended pleading withing 15 days of service of notice of entry of this order.

7. 9:00 AM CASE NUMBER: C25-01808

CASE NAME: HARRY KARRIS VS. JILL CHERNE

***HEARING ON MOTION IN RE: QUASH SUBPOENAS**

FILED BY:

TENTATIVE RULING:

The unopposed motion of Betty Jean Harris to quash six subpoenae purportedly served on her behalf, copies of which are attached to the Declaration of Tanner D. Brink in Support of Motion to Quash, filed November 12, 2025 in this action, is continued for the purpose of requiring counsel for Ms. Betty Jean Harris, counsel for Harry Karris, and counsel for Defendant Jill Elizabeth Cherne to meet and confer regarding this issue.

Counsel Brink is also ordered to serve a copy of the Motion to Quash and all supporting papers on Defendant Jill Elizabeth Cherne.

The hearing is continued to Friday, June 26, 2026 at 9:00 a.m. in Department 32. The parties are ordered to file a joint statement regarding their meet and confer efforts nine (9) court days prior to the hearing on June 26, 2026.